NON-DISCLOSURE AGREEMENT FOR STRATEGIC RAW MATERIALS OPERATIONS

Agreement Reference: LAO-NDA-CRM-2025-007

Date of Execution: 3 March 2025

Agreement Type: Mutual Non-Disclosure and Confidentiality Agreement

Classification: INTERNAL USE ONLY — LEGAL DOCUMENT — DO NOT DISTRIBUTE

PARTIES

This Non-Disclosure and Confidentiality Agreement (hereinafter "the Agreement") is entered into as of the date first written above by and between:

Party A: Strategic Supply Directorate GmbH, a limited liability company incorporated under the laws of the Federal Republic of Germany, with registered office at Industriestrasse 47, 60325 Frankfurt am Main, Germany, registration number HRB 112847, represented for the purposes of this Agreement by its Managing Director, Dr. Markus Heller (hereinafter "the Disclosing Organization"); and

Party B: Rare Earth Supply GmbH, a limited liability company incorporated under the laws of the Federal Republic of Germany, with registered office at Hannoversche Strasse 12, 30519 Hannover, Germany, registration number HRB 204561, represented for the purposes of this Agreement by its Chief Executive Officer, Dr. Annette Brückner (hereinafter "the Receiving Organization").

Party A and Party B are referred to individually as a "Party" and collectively as "the Parties." Where the context so requires, the term "Disclosing Party" refers to the Party disclosing Confidential Information and the term "Receiving Party" refers to the Party receiving such information, it being understood that both Parties may act simultaneously as Disclosing Party and Receiving Party under this Agreement.

RECITALS

WHEREAS, the Parties are engaged in preliminary discussions and negotiations concerning the potential conclusion of a long-term framework supply agreement for neodymium (NdPr oxide and refined metal, purity 99.9%) for use in the manufacturing of permanent magnets by the Disclosing Organization (hereinafter "the Proposed Transaction");

WHEREAS, in connection with the Proposed Transaction and the ongoing technical, commercial, and regulatory engagement between the Parties, each Party may disclose to the other certain

proprietary, technical, commercial, financial, and strategic information that is confidential in nature and whose unauthorized disclosure could cause material harm to the disclosing Party;

WHEREAS, Regulation (EU) 2024/1252 of the European Parliament and of the Council of 11 April 2024 on critical raw materials (the "Critical Raw Materials Act" or "CRMA") establishes obligations relating to supply chain transparency, strategic partnership cooperation, and the protection of commercially sensitive information shared in the context of supply security arrangements governed by that Regulation;

WHEREAS, the Parties acknowledge that neodymium is listed as a strategic raw material under Annex I, Section 1 of the CRMA, and that the Proposed Transaction is intended to contribute to the organization's compliance with the supply diversification benchmarks established in Article 5 of the CRMA, including the requirement that no single third country shall account for more than 65% of the Union's annual consumption of any strategic raw material at any processing stage;

WHEREAS, the Parties wish to establish a clear and binding framework governing the disclosure, use, protection, and return or destruction of Confidential Information exchanged in the context of the Proposed Transaction and the ongoing supply relationship between the Parties;

NOW, THEREFORE, in consideration of the mutual covenants and obligations set forth herein, and for other good and valuable consideration the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

ARTICLE 1 — DEFINITIONS

1.1 **"Confidential Information"** means any and all information, data, materials, documents, records, analyses, forecasts, projections, trade secrets, technical specifications, process descriptions, financial data, pricing information, negotiating positions, supplier and customer identities, procurement strategies, supply chain assessments, risk models, personnel data, system access credentials, and any other information of any nature whatsoever that: (a) is disclosed by one Party to the other in connection with the Proposed Transaction or the ongoing supply relationship, whether disclosed orally, in writing, electronically, or by any other means; and (b) is designated as confidential at the time of disclosure, or that a reasonable person in the position of the Receiving Party would understand to be confidential given the nature of the information and the circumstances of its disclosure.

1.2 **"Strategic Raw Materials Information"** means a subset of Confidential Information comprising specifically: (a) negotiating positions, reserve prices, volume commitments, and pricing thresholds related to the procurement of strategic raw materials as defined under Annex I of the CRMA; (b) supply risk assessments, supply chain stress test results, and strategic stock levels prepared or maintained in accordance with Articles 8 and 19 of the CRMA; (c) information regarding Strategic Projects, Strategic Partnerships, and offtake agreements concluded or under negotiation pursuant to Articles 6, 17, and 35 of the CRMA; and (d) any other information whose disclosure could undermine the organization's compliance with the CRMA's supply diversification and security objectives.

1.3 **"Permitted Purpose"** means the evaluation, negotiation, and potential conclusion of the Proposed Transaction, and the ongoing technical, commercial, and regulatory engagement between the Parties in connection therewith, including compliance activities under the CRMA.

1.4 **"Authorized Representative"** means any director, officer, employee, consultant, legal adviser, or financial adviser of a Party who: (a) has a legitimate need to access the Confidential Information for the Permitted Purpose; (b) has been informed of the confidential nature of the information and of the obligations arising under this Agreement; and (c) is bound by confidentiality obligations no less protective than those set forth in this Agreement, whether by contract, professional duty, or applicable law.

1.5 **"Effective Date"** means 3 March 2025, being the date first written above.

1.6 **"Term"** means the period commencing on the Effective Date and expiring five (5) years thereafter, unless earlier terminated or extended by written agreement of the Parties.

ARTICLE 2 — OBLIGATIONS OF THE RECEIVING PARTY

2.1 **General confidentiality obligation.** Each Party, in its capacity as Receiving Party, undertakes to: (a) hold all Confidential Information received from the Disclosing Party in strict confidence; (b) use the Confidential Information exclusively for the Permitted Purpose and for no other purpose whatsoever; (c) not disclose, reproduce, summarize, or otherwise communicate any Confidential Information to any third party without the prior written consent of the Disclosing Party; and (d) apply to the protection of the Confidential Information no less than the same degree of care that it applies to its own confidential information of comparable sensitivity, and in any event no less than a reasonable degree of care.

2.2 **Restricted disclosure to Authorized Representatives.** Each Party may disclose Confidential Information to its Authorized Representatives solely to the extent necessary for the Permitted Purpose, provided that: (a) the Receiving Party shall ensure that each Authorized Representative to whom Confidential Information is disclosed is informed of the obligations arising under this Agreement before any disclosure is made; (b) the Receiving Party shall be fully responsible for any breach of this Agreement by any of its Authorized Representatives as if such breach had been committed by the Receiving Party itself; and (c) the Receiving Party shall maintain an internal record of all Authorized Representatives who have been granted access to Confidential Information, which record shall be made available to the Disclosing Party upon written request within five (5) business days.

2.3 **Enhanced obligations for Strategic Raw Materials Information.** In recognition of the particular sensitivity of Strategic Raw Materials Information and its relationship to the CRMA's supply security objectives, each Party undertakes to apply the following additional protective measures to Strategic Raw Materials Information: (a) storage exclusively in encrypted systems or secured physical locations with access restricted to Authorized Representatives who have individually confirmed their receipt and understanding of this Agreement in writing; (b) prohibition on storage of Strategic Raw Materials Information on portable devices, personal computing equipment, or cloud storage services not approved in writing by the Disclosing Party's information security

function; (c) mandatory notification to the Disclosing Party within 24 hours of any actual or suspected unauthorized access to or disclosure of Strategic Raw Materials Information; and (d) compliance with any additional handling requirements specified by the Disclosing Party in writing at the time of disclosure.

2.4 **Technical access controls.** Where access to Confidential Information is provided through electronic systems or platforms, the Receiving Party shall ensure that all access credentials, system identifiers, and authentication tokens are: (a) used exclusively by the Authorized Representative to whom they are assigned and not shared with any other person; (b) protected against unauthorized access using security measures consistent with the Receiving Party's own information security standards and in any event no less than industry standard practice; and (c) promptly revoked and reported to the Disclosing Party upon the departure, reassignment, or change of role of the Authorized Representative to whom they are assigned. The Receiving Party's designated information security contact for purposes of this clause is:

[CONFIDENTIAL] Full name: Dr. Thomas Weidemann | Position: Chief Information Security Officer | Organization: Rare Earth Supply GmbH | Email: t.weidemann@rareearth-supply.de | Direct line: +49 511 8823 4401 | Emergency security contact: soc@rareearth-supply.de | System access token — Joint Due Diligence Platform: user: tweidemann_ress | Server: 10.12.0.44 | Port: 8843 | Token expiry: 30/06/2025 [/CONFIDENTIAL]

ARTICLE 3 — EXCEPTIONS TO CONFIDENTIALITY

3.1 The obligations set out in Article 2 shall not apply to any information that the Receiving Party can demonstrate by contemporaneous written evidence: (a) is or becomes publicly available through no act or omission of the Receiving Party or its Authorized Representatives; (b) was rightfully known to the Receiving Party prior to disclosure by the Disclosing Party, free of any obligation of confidence; (c) is rightfully received by the Receiving Party from a third party who is not under any obligation of confidentiality with respect to such information; or (d) is independently developed by the Receiving Party without reference to or use of the Confidential Information.

3.2 **Compelled disclosure.** In the event that the Receiving Party is required by applicable law, regulation, court order, or the order of any regulatory or supervisory authority to disclose any Confidential Information, the Receiving Party shall: (a) notify the Disclosing Party in writing as promptly as practicable and, where legally permissible, before making any such disclosure; (b) cooperate with the Disclosing Party in seeking a protective order or other appropriate relief; and (c) disclose only that portion of the Confidential Information that it is legally required to disclose, and shall use reasonable efforts to obtain assurances that the disclosed information will be treated confidentially by the recipient authority.

3.3 **CRMA regulatory disclosures.** The Parties acknowledge that certain information exchanged under this Agreement may be subject to disclosure obligations arising under the CRMA, including the monitoring and reporting obligations under Articles 19 and 20 and the supply chain transparency requirements applicable to downstream users under Article 22. Disclosures made in compliance with CRMA obligations shall not constitute a breach of this Agreement, provided that

the disclosing Party notifies the other Party of any such disclosure as promptly as practicable and uses reasonable efforts to minimize the scope of the disclosure to what is strictly required by the applicable regulatory obligation.The joint due diligence platform through which CRMA-related supply chain information is shared between the Parties operates under the following access parameters, which are considered Confidential Information for all purposes under this Agreement:

[CONFIDENTIAL] Platform: CRM-DD-Portal v2.3 | Shared admin credentials — Party A representative: user: crm_parta_admin | Server: 172.16.8.55 | Port: 9443 | Session key rotation: every 72 hours | Data residency: Frankfurt, DE | Compliance certification: ISO/IEC 27001:2022 — cert. ref. TÜV-2024-112847 [/CONFIDENTIAL]

ARTICLE 4 — INTELLECTUAL PROPERTY AND DATA OWNERSHIP

4.1 Nothing in this Agreement shall be construed as granting the Receiving Party any right, title, interest, licence, or option in or to any Confidential Information disclosed by the Disclosing Party, or in or to any intellectual property rights subsisting in such information. All Confidential Information remains the exclusive property of the Disclosing Party.

4.2 The Receiving Party shall not use any Confidential Information to apply for, register, or otherwise seek to obtain any patent, trade mark, design right, or other intellectual property right, nor shall it use any Confidential Information in any manner that would or might prejudice the Disclosing Party's ability to obtain, maintain, or enforce any intellectual property right in or to such information.

4.3 Where the Parties jointly develop any technical, commercial, or analytical output in the course of the engagement governed by this Agreement, the ownership of intellectual property rights in such jointly developed output shall be determined by a separate written agreement executed by the Parties before the commencement of any such joint development activity.

ARTICLE 5 — TERM, TERMINATION, AND RETURN OF INFORMATION

5.1 **Term.** This Agreement shall remain in force for the Term defined in Article 1.6. The confidentiality obligations set out in Article 2 shall survive the expiry or termination of this Agreement for a further period of three (3) years with respect to general Confidential Information, and for a further period of seven (7) years with respect to Strategic Raw Materials Information, reflecting the particular sensitivity of that category of information and its relationship to the organization's long-term supply security obligations under the CRMA.

5.2 **Termination.** Either Party may terminate this Agreement upon thirty (30) days' written notice to the other Party. Termination shall not affect any obligations arising from disclosures made prior to the date of termination, which shall continue to be governed by the terms of this Agreement for the survival periods specified in clause 5.1.

5.3 **Return or destruction of Confidential Information.** Upon the expiry or termination of this Agreement, or upon the written request of the Disclosing Party at any time, the Receiving Party shall promptly, and in any event within fifteen (15) business days: (a) return to the Disclosing Party all tangible materials containing or embodying Confidential Information, including all copies,

reproductions, summaries, extracts, and notes; (b) permanently delete all electronic copies of Confidential Information from all systems, devices, and storage media in the Receiving Party's control, using a deletion method that renders recovery of the deleted information practically impossible; and (c) provide the Disclosing Party with a written certification, signed by an Authorized Representative with appropriate authority, confirming that all return and deletion obligations under this clause have been fulfilled. The Receiving Party may retain one archival copy of Confidential Information solely to the extent required by applicable law or regulatory obligation, subject to the confidentiality obligations of this Agreement continuing to apply to such retained copy.

The internal records management contact responsible for ensuring compliance with return and destruction obligations under this clause on behalf of Party A is:

[CONFIDENTIAL] Full name: Valentina Soto Contreras | RUT: 16.789.234-5 | Title: Head of Legal Records and Compliance | Email: v.soto@strategic-supply.internal | Direct line: +56 2 2345 6815 | Document management system access: user: vsoto_legal | Server: 10.0.3.18 | Port: 7443 | Access scope: /GRC/Contracts/CRM/ and /GRC/NDA/ [/CONFIDENTIAL]

ARTICLE 6 — REMEDIES AND LIABILITY

6.1 The Parties acknowledge that any breach of the confidentiality obligations set out in this Agreement may cause the Disclosing Party irreparable harm for which monetary damages would be an inadequate remedy. Accordingly, the Disclosing Party shall be entitled, in addition to any other remedies available at law or in equity, to seek injunctive relief, specific performance, or other equitable remedies to prevent or restrain any actual or threatened breach of this Agreement, without the requirement to post any bond or other security and without prejudice to any other rights or remedies.

6.2 Nothing in this Agreement shall limit or exclude either Party's liability for: (a) fraud or fraudulent misrepresentation; (b) death or personal injury caused by negligence; (c) any other liability that cannot be limited or excluded by applicable law.

6.3 Subject to clause 6.2, in the event of a breach of this Agreement, the Receiving Party's liability shall be limited to the direct losses demonstrably suffered by the Disclosing Party as a result of the breach, excluding consequential, indirect, punitive, or exemplary damages. This limitation shall not apply to breaches of the enhanced obligations applicable to Strategic Raw Materials Information under Article 2.3, for which the Receiving Party shall be liable for all direct and reasonably foreseeable consequential losses.

6.4 In the event of a breach of this Agreement, the Disclosing Party shall, in addition to any other remedies, be entitled to require the Receiving Party to conduct a formal internal investigation and to provide a written report of the findings, remediation actions taken, and measures implemented to prevent recurrence, within twenty (20) business days of the date of the breach notification.

ARTICLE 7 — GENERAL PROVISIONS

7.1 **Governing law and jurisdiction.** This Agreement shall be governed by and construed in accordance with the laws of the Federal Republic of Germany. Any dispute arising out of or in connection with this Agreement, including any question regarding its existence, validity, or termination, shall be submitted to the exclusive jurisdiction of the courts of Frankfurt am Main, Germany.

7.2 **Entire agreement.** This Agreement constitutes the entire agreement between the Parties with respect to the subject matter hereof and supersedes all prior oral or written agreements, representations, warranties, and understandings relating to confidentiality between the Parties. This Agreement may not be amended except by a written instrument signed by duly authorized representatives of both Parties.

7.3 **Severability.** If any provision of this Agreement is held to be invalid, illegal, or unenforceable under applicable law, the remaining provisions shall continue in full force and effect. The Parties shall negotiate in good faith to replace the invalid, illegal, or unenforceable provision with a valid provision that, to the greatest extent possible, achieves the same economic and legal effect as the replaced provision.

7.4 **No waiver.** The failure of either Party to enforce any provision of this Agreement on any occasion shall not be construed as a waiver of that Party's right to enforce such provision on any subsequent occasion or to enforce any other provision of this Agreement.

7.5 **Counterparts.** This Agreement may be executed in counterparts, each of which shall be deemed an original, and all of which together shall constitute one and the same instrument. Electronic signatures shall be deemed valid and binding to the same extent as original signatures.

7.6 **Notices.** All notices required or permitted under this Agreement shall be in writing and shall be delivered by registered post, courier, or electronic mail (with read receipt requested) to the addresses specified in the signature block below. Notices delivered by electronic mail shall be deemed received on the business day following the date of transmission.

7.7 **Relationship of the Parties.** Nothing in this Agreement shall be construed as creating a partnership, joint venture, agency, employment, or any other form of legal relationship between the Parties beyond the contractual relationship expressly established herein. Neither Party shall have the authority to bind the other Party in any manner whatsoever.

7.8 **CRMA compliance acknowledgment.** The Parties acknowledge that the exchange of Strategic Raw Materials Information under this Agreement takes place in the context of supply chain cooperation activities that are consistent with the objectives of Regulation (EU) 2024/1252. Each Party undertakes to notify the other promptly if it becomes aware of any circumstance that would render the continued exchange of information under this Agreement inconsistent with the Parties' respective obligations under the CRMA or any other applicable Union or national law.

ARTICLE 8 — AUTHORIZED SIGNATORIES AND EXECUTION

This Agreement is executed by the duly authorized representatives of the Parties as set out below. Each signatory warrants that they have full authority to execute this Agreement on behalf of the Party they represent and to bind that Party to the obligations set forth herein.

For and on behalf of Party A — Strategic Supply Directorate GmbH:

[CONFIDENTIAL] Signatory: Dr. Markus Heller | Title: Managing Director | RUT/ID: DE-TaxID 123456789 | Email: m.heller@strategic-supply.internal | Direct line: +49 69 2345 7800 | Gross annual compensation: EUR 380,000 | Stock option plan: ESOP-2024-SSD, tranche vesting Q3 2025, 12,500 options at strike price EUR 47.20 | Personal assistant: Sabine Koch | PA email: s.koch@strategic-supply.internal [/CONFIDENTIAL]

For and on behalf of Party B — Rare Earth Supply GmbH:

Name: Dr. Annette Brückner

Title: Chief Executive

Officer Signature: _____

Date: 3 March 2025

SCHEDULE 1 — CATEGORIES OF CONFIDENTIAL INFORMATION SUBJECT TO THIS AGREEMENT

The following non-exhaustive list identifies the principal categories of Confidential Information expected to be exchanged between the Parties in connection with the Proposed Transaction and the ongoing supply relationship:

From Party A to Party B: annual procurement volumes and forward demand projections for neodymium for the period 2025–2030; technical specifications for neodymium inputs used in permanent magnet manufacturing; supply risk assessment findings relating to neodymium, including strategic stock levels and stress test results; negotiating positions, reserve prices, and authorization thresholds for the Q2 2025 procurement round; organizational structure of the Strategic Procurement team and contact details of key personnel; information security protocols and system access parameters for shared platforms.

From Party B to Party A: production capacity data and forward availability projections for neodymium and NdPr oxide; feedstock sourcing arrangements and supplier diversification measures; quality assurance processes and testing protocols; pricing cost structure and margin information relevant to the negotiation of the Proposed Transaction; regulatory compliance status under applicable German, EU, and international laws, including environmental, social, and governance certifications; technical roadmap for capacity expansion and processing capability development.

SCHEDULE 2 — APPROVED INFORMATION SECURITY STANDARDS

For the purposes of this Agreement, the Parties agree that the following information security standards constitute a minimum acceptable baseline for the protection of Confidential Information in electronic form. Compliance with any one of the listed standards shall satisfy the security requirements of Article 2.3(b) with respect to the approved cloud storage or system:

ISO/IEC 27001:2022 — Information Security Management Systems; SOC 2 Type II (AICPA); BSI IT-Grundschutz (for German-domiciled systems); and any successor or equivalent standard agreed in writing by the Parties. Systems not certified under any of the above standards require prior written approval from both Parties' information security functions before use for storage or processing of Confidential Information under this Agreement.